

COURT OF CORNELIUS

Study Guide



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OCTOBER

Category Overview:

Court of Cornelius is a three-round legal strategy and advocacy category designed to test delegates on the three essential dimensions of law: how it is made, how it is applied, and how it is argued. Delegates will progress from legislative deliberation to corporate legal problem-solving and finally to courtroom advocacy. The category does not require delegates to arrive as legal experts. Instead, it rewards logical reasoning, effective research, persuasive argumentation, teamwork, and the ability to respond to evolving legal circumstances. Throughout the category, delegates will be expected not merely to identify what the law says, but to consider why a law exists, whether it adequately protects the interests concerned, how legal rules operate when confronted with a real dispute, and how competing interpretations can be defended before a court.

Delegates should particularly understand the distinction between:

- **Law: the rule or legal principle governing the dispute.**
- **Facts: what actually occurred.**
- **Application: how the law operates when applied to those facts.**
- **Argument: why that application supports your client's or delegation's position.**

Round 1: The Law Commission

Delegate Cap: 3

Delegations will assume the role of members of a Law Commission tasked with examining an existing but inadequately protected area of law. At the beginning of the round, delegates will receive a legislative brief containing the relevant law, its present legal framework, the interests it seeks to protect, and the principal weaknesses or ambiguities within it. The objective of each delegation will be to determine how the law should be strengthened. The round will begin with a period of consultation during which teams may analyse the legislation, identify loopholes and formulate proposed reforms. Delegations will subsequently enter a moderated legislative session in which they may defend their proposals, challenge those presented by competing teams, respond to questions, and negotiate amendments. Teams will ultimately be required to submit a concise Law Reform Proposal setting out their recommended amendments and the reasoning behind them.

Delegates should remember that effective legislation is not simply the strictest legislation. Proposed reforms must balance the rights and interests of affected parties while remaining clear, enforceable and proportionate.

- **Identification of Legal Gaps: /10**
- **Quality & Practicality of Proposed Reforms: /10**
- **Legal Reasoning & Justification: /10**
- **Debate, Rebuttal & Consultation: /5**
- **Clarity & Structure of Final Proposal: /5**

Round 2: Corporate Counsel

Delegate Cap: 3

In Round 2, delegates will transition from lawmakers to corporate legal counsel. Each delegation will receive a detailed case file concerning a fictional corporation facing a significant legal dispute. The problem may involve areas such as contractual obligations, corporate governance, shareholder rights, director responsibilities, regulatory compliance or commercial liability. The case file will contain the principal facts of the dispute alongside relevant documents and legal material. Not every fact provided will necessarily carry equal legal significance. Delegates must distinguish relevant information from distractions, identify the principal legal issues, determine the corporation's potential rights and liabilities, and formulate a legally defensible course of action. Teams will then prepare a Legal Advisory Memorandum explaining their interpretation of the dispute and their proposed strategy. However, circumstances may not remain static. During the round, additional information may be introduced which could alter the legal position of the corporation. Delegates will therefore be expected to reconsider their advice where necessary rather than simply defend their original position. The strongest solutions will not merely identify legal problems. They will demonstrate how those problems should actually be resolved while accounting for legal exposure, commercial consequences and the interests of relevant stakeholders.

- **Evaluation Criteria (Total: 40 Marks)**
- **Issue Identification & Understanding of Facts: /10**
- **Application of Legal Principles: /10**
- **Quality & Feasibility of Proposed Solution: /10**
- **Adaptability to New Information: /5**
- **Structure & Persuasiveness of Legal Advice: /5**

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Round 3: The Court of Cornelius

Delegate Cap: 2

The corporate dispute introduced during Round 2 will now escalate. Negotiations have failed. Litigation has commenced. In the final round, qualifying delegations will enter the Court of Cornelius and participate in a mock trial based upon the dispute they previously investigated. Teams will be assigned opposing sides of the case and will act as counsel for either the Claimant/Plaintiff or Defendant. A further trial brief may be released before proceedings begin, containing additional evidence, witness information or developments relevant to the dispute. Teams must construct their case from the available facts and applicable legal principles. They will be expected to develop a coherent theory of the case, identify weaknesses in the opposing position, anticipate counterarguments and present their submissions before the Bench. Proceedings will consist of opening submissions, substantive legal arguments, judicial questioning, rebuttals and closing submissions. Judges may interrupt counsel at any point to question the legal basis, factual consistency or practical implications of an argument. Delegates must therefore understand their case rather than rely upon prepared speeches. The purpose of the round is not theatrical courtroom performance. Advocacy will be rewarded when it is supported by law, evidence and reasoning. Teams will be assessed independently of whether the judgment ultimately favours their assigned side. A delegation may therefore lose the fictional case while still outperforming its opposition within the competition.

- Evaluation Criteria (Total: 50 Marks)
- Legal Reasoning & Application of Law: /15
- Use of Facts & Evidence: /10
- Strength and Structure of Arguments: /10
- Response to Judicial Questions & Rebuttal: /10
- Courtroom Advocacy & Professionalism: /5